22CV39627

TYLER ALLEN LOFALL
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IN THE CIRCUIT COURT FOR THE STATE OF OREGON

FOR THE COUNTY OF CLACKAMAS

TYLER ALLEN LOFALL, Plaintiff, vs. WEST LINN DEFENDANTS at EL *West Linn Pd, Officer Dana Gunnarson, Officer Catlin Blyth* DEFENDANTS,	Case No.: 22CV39627 General Judgment of Dismissal **PROPOSED ORDER GRANTING PLAINTIFF'S MOTION TO DISMISS CLAIMS WITHOUT PREJUDICE** **NO OBJECTION**

ORDER TO DISMISS CLAIM 22CV39627

This matter comes before the Court on Plaintiff Tyler Allen Lofall's Motion to Dismiss State Claims (Case No. 22CV39627) so that his related federal claims (Case No. 3:24-CV-839SB) may proceed exclusively in Federal Court. After reviewing the Motion, supporting memorandum, and the record, and for good cause shown,

IT IS HEREBY ORDERED:

1. **Dismissal of State Claims.**
The claims asserted in Case No. 22CV39627 are dismissed without prejudice.

2. **Good-Faith Voluntary Dismissal.**
The Court finds that this dismissal is made in good faith to avoid duplicative litigation and to preserve Plaintiff's constitutional right to pursue his federal claims in the appropriate forum.

3. **No Fee Shifting.**
No attorney fees or costs shall be imposed against Plaintiff as a result of this dismissal, unless, in a future determination, the Court finds that Plaintiff's conduct was dilatory or in bad faith.

4. **Clerk's Action.**
The Clerk is directed to close the state action with respect to the dismissed claims.

5. **No Additional Preliminary Requirements.**

The Court finds that all conditions for the continuation of the federal claims have been met and no further preconditions or filings are required before the federal proceedings resume.

DATED THIS _____ Day of February, 2025

3/6/2025 10:06:48 AM

Circuit Court Judge Kathie F. Steele

Judge _____Circuit Court Judge

Respectfully submitted,

DATED THIS 13th Day of February, 2025

s /Tyler A. Lofall

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PROPOSED ORDER GRANTING PLAINTIFF'S MOTION TO DISMISS CLAIMS WITHOUT PREJUDICE

NO OBJECTION

CERTIFICATE OF READINESS
(UTCR 5.100)

I, Tyler A. Lofall, Pro Se Plaintiff, hereby certify that the attached proposed order titled "PROPOSED ORDER GRANTING PLAINTIFF'S MOTION TO DISMISS CLAIMS WITHOUT PREJUDICE" and "PLAINTIFF'S MOTION TO DISMISS WITHOUT PREDJUDICE TO PERSUE CLAIMS IN FEDERAL COURT

NO OBJECTION"

is ready for judicial signature in compliance with Uniform Trial Court Rule 5.100.

In support of this submission:

1. The proposed order was (or is deemed to be) served on each counsel at least three (3) days prior to submission to the court.

2. Alternatively, and in lieu of service, I have obtained a written stipulation from each counsel that no objection exists regarding the form of the proposed order.

3. In particular, opposing counsel, Dave Lewis, has confirmed his "no objection" via email (attached hereto as Exhibit A) to the proposed order and accompanying motion to dismiss. Although his email expressly disclaims any agreement with the substantive allegations, his confirmation in terms of this proposed order are confirmed.

4. I have provided all parties with the required notice of the objection period, and no objections remain unresolved.

Based on the foregoing, I certify that this proposed order is ready for judicial signature.

Dated this 13th day of February, 2025.

s /Tyler A. Lofall

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Exhibit A

(Attached) – Printed copy of the email from opposing counsel, Dave Lewis, confirming "no objection" to the proposed order.

Gmail

Tyler Lofall <tyleralofall@gmail.com>

RE: Lofall v. West Linn, et al. - Removal and Trial Exhibits

Dave Lewis <dlewis@cisoregon.org> Wed, Feb 12, 2025 at 4:13 PM
To: Tyler Lofall <tyleralofall@gmail.com>
Cc: Melanie Webb <MWebb@cisoregon.org>, Jon Stouffer <jstouffer@cisoregon.org>, "kklein@westlinnoregon.gov" <kklein@westlinnoregon.gov>, Lauren Nweze <lnweze@cisoregon.org>, Raechelle Ottosen <rottosen@cisoregon.org>

Mr. Lofall,

I have no objection to your Proposed Order or to your Motion to Dismiss. I agree to the waiver of costs and attorney fees in exchange for the dismissal.

However, please do not construe my lack of objection as an adoption of, admission of, or agreement with any of the statements, allegations, or assertions you make in your Proposed Order or Motion to Dismiss. In fact, I expressly deny your statements, allegations, and assertions. Also, my lack of objection should not be construed as a waiver of any defense in either the Clackamas County Circuit Court Case No. 22CV39627 lawsuit or the United States District Court for the District of Oregon Case No. 3:24-cv-00839-SB lawsuit.

CIS

Dave Lewis|Supervising Litigation Attorney
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